



CHAPTER xxvii

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April, nineteen hundred and sixty-one, to the thirtieth day of September, nineteen hundred and sixty-two, and for other purposes.
[19th July, 1961]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Loans) Act, 1955, (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year, which periods are in the principal Act and in this Act referred to severally as a "financial period":

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September, nineteen hundred and sixty-one, regulated by the London County Council (Money) Act, 1960:

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April, nineteen hundred and sixty-one, to the thirtieth day of September, nineteen hundred and sixty-two, (hereinafter referred to as "the financial period, 1961-1962") should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period, 1961-1962, in the execution of the powers and duties respectively delegated to those committees; and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council:

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period, 1961-1962, are set out in Part I of the schedule to this Act:

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period, 1961-1962, are set out in Part II of the said schedule:

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Surplus or insufficiency of sums authorised to be expended or lent) of the principal Act may authorise the Council to expend on capital account or to lend during the financial period, 1961-1962, are set out in Part III of the said schedule:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title
and
construction.

1. This Act may be cited as the London County Council (Money) Act, 1961, and shall be read and have effect as one with the principal Act.

Interpretation.

2. In and for the purposes of this Act—

“ the Council ” means the London County Council;

“ the financial period, 1961-1962,” means the financial year and the following six months;

“ the financial year ” means the period from the first day of April, nineteen hundred and sixty-one, to the thirty-first day of March, nineteen hundred and sixty-two, both dates inclusive;

“ the following six months ” means the period from the first day of April, nineteen hundred and sixty-two, to the thirtieth day of September, nineteen hundred and sixty-two, both dates inclusive;

“ the principal Act ” means the London County Council (Loans) Act, 1955; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period, 1961-1962, the Council may under the powers of section 4 (Capital expenditure of Council) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure
on capital
account
during
financial
period,
1961-1962.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall, as regards the financial year and the following six months respectively, be sums which, except as by the principal Act otherwise provided, shall not exceed those mentioned in the fifth and sixth columns respectively of Part I of the schedule in relation to the said purposes respectively.

4.—(1) The bodies and persons to whom the Council may, under the powers of section 5 (Loans by Council) of the principal Act, lend money during the financial period, 1961-1962, and who may under those powers borrow from the Council during that financial period, shall be the bodies and persons mentioned in the first column of Part II of the schedule.

Loans to
bodies and
persons during
financial
period,
1961-1962.

(2) The sums which may be so lent and borrowed shall, as regards the financial year and the following six months respectively, be sums which, except as by the principal Act otherwise provided, shall not exceed those specified in the second and third columns respectively of the said Part II in relation to such bodies and persons respectively.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Surplus or insufficiency of sums authorised to be expended or lent) of the principal Act to expend on capital account or to lend during the financial period, 1961-1962, in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall, as regards the financial year and the following six months respectively, be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Amount of
further
expenditure
and loans
which
Treasury
may authorise
in case of
insufficiency.

Saving.

6. It shall not be lawful for the Council to exercise for the purposes mentioned in the foregoing provisions of this Act the powers of borrowing conferred by the principal Act otherwise than in compliance with the provisions for the time being in force of any order made under section 1 of the Borrowing (Control and Guarantees) Act, 1946, and nothing in this Act shall be deemed to authorise a metropolitan borough council to borrow money otherwise than in compliance with those provisions.

SCHEDULE

PART I

ESTIMATED REQUIREMENTS FOR CAPITAL EXPENDITURE

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March, 1962 (5)	Estimated requirement for six months ending 30th September, 1962 (6)
		Total parliamentary estimate (3)	Expenditure to 31st March, 1961 (approximate) (4)		
		£	£	£	£
1. Metropolis Management Act, 1855, and various Acts authorising improvements and works.	Construction, widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London, and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	*	—	1,075,000	550,000
2. Local Government Act, 1888, and sundry Acts relating to bridges.	Reconstruction of Narrow Street and Temple Mills bridges.	*	—	50,000	20,000
3. Local Government Act, 1888.	Acquisition of property and works in connection with Newington Sessions House.	*	—	5,500	—
	Carried forward ...			1,130,500	570,000

SCHEDULE—continued

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March, 1962 (5)	Estimated requirement for six months ending 30th September, 1962 (6)
		Total parliamentary estimate (3)	Expenditure to 31st March, 1961 (approximate) (4)		
	Brought forward ...	£	£	£	£
4. Children and Young Persons Act, 1933.	Acquisition of property and additions and alterations to, and equipment of, approved schools and remand homes. ...	*	—	82,500	44,000
5. London County Council (General Powers) Act, 1934.	Acquisition of property and execution of works in connection with Westferry-road to West India Dock-road improvement.	†145,750	73,000	1,000	—
6. London and Middlesex (Improvements, &c.) Act, 1936, and London County Council (Improvements) Act, 1948.	Acquisition of property and execution of works in connection with extension of Cromwell-road. ...	4,795,000	3,170,000	150,000	20,000
7. Public Health (London) Act, 1936, and various Acts relating to main drainage.	Extension to outfall works, construction of relief sewers and pumping stations and other purposes. ...	*	—	3,400,000	1,425,000

8. London County Council (General Powers) Act, 1937.	Acquisition of property and execution of works in connection with improvements at Notting Hill-gate.	†2,542,900	2,266,000	9,000	—
9. Physical Training and Recreation Act, 1937.	Provision of staff sports pavilion. ...	*	—	16,500	750
10. Green Belt (London and Home Counties) Act, 1938, Open Spaces Act, 1906, and various Acts relating to parks, open spaces, gardens, public walks and pleasure grounds.	Contributions towards the green belt scheme, provision and lay-out of additional open spaces and other purposes. ...	*	—	650,000	300,000
11. London County Council (Tunnel and Improvements) Act, 1938.	Acquisition of property and execution of works for the duplication of Blackwall Tunnel and for the improvement of the southern approach to Wandsworth Bridge.	†3,933,250	2,152,000	325,000	150,000
12. London County Council (General Powers) Act, 1939.	Acquisition of property and execution of works for the improvement of the south bank of the river Thames. ...	†1,709,000	2,018,000	90,500	109,350
13. London Government Act, 1939. ...	Completion of North and South Blocks and reinstatement after war damage, County Hall.	*	—	175,000	90,000
	Acquisition of property and execution of works in connection with local administrative offices. ...	*	—	18,000	2,000
	Extensions and alterations to supplies depots and provision of equipment. ...	*	—	260,000	14,000
	Preservation of historic buildings. ...	*	—	10,000	5,000
	Modernisation of Horniman Museum. ...	*	—	25,000	1,000
14. Education Acts, 1944 to 1953. ...	Acquisition of sites, execution of works, provision and equipment of schools and other purposes. ...	*	—	6,475,000	3,250,000
	Carried forward			12,818,000	5,981,100

SCHEDULE—continued

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March, 1962 (5)	Estimated requirement for six months ending 30th September, 1962 (6)
		Total parliamentary estimate (3)	Expenditure to 31st March, 1961 (approximate) (4)		
		£	£	£	£
	Brought forward ...			12,818,000	5,981,100
15. National Health Service Acts, 1946 to 1952.	Acquisition and adaptation of property, provision of and alterations to day nurseries, maternity and child welfare centres, training centres, ambulance stations, etc., and provision of equipment and vehicles.	*	—	215,000	120,000
16. Town and Country Planning Acts, 1947 to 1959.	Acquisition of property, compensation and execution of works.	*	—	2,090,000	1,000,000
17. Fire Services Act, 1947.	Acquisition of property and erection of fire stations.	*	—	250,000	110,000
18. London County Council (General Powers) Act, 1947.	Erection of concert hall and incidental works.	*	—	305,000	400,000
19. National Assistance Act, 1948.	Acquisition of property, improvements, adaptations, erection and equipment of premises and other purposes.	*	—	625,000	300,000

20. Children Act, 1948.	Acquisition of property and improvements, adaptations, erection and equipment of residential homes, nurseries and hostels.	*	—	167,500	56,000
21. London County Council (General Powers) Act, 1948.	Acquisition of land and execution of works in connection with High Holborn improvement.	†1,712,500	244,000	40,000	—
22. Employment and Training Act, 1948.	Acquisition and adaptation of property and execution of works in connection with youth employment bureaux.	*	—	11,500	50
23. London County Council (Crystal Palace) Act, 1951.	Expenditure in connection with National Recreation Centre.	*	—	700,000	450,000
24. Town Development Act, 1952.	Acquisition of property, erection of dwellings and other purposes.	*	—	200,000	100,000
25. Housing Act, 1957, and other Acts relating to housing.	Acquisition of property, erection of dwellings, provision of hostel accommodation and other purposes.	*	—	15,725,000	8,050,000
26. Park Lane Improvement Act, 1958.	Acquisition of property and execution of works.	5,380,000	2,055,000	350,000	260,000
	Carried forward			33,497,000	16,827,150

SCHEDULE—continued

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March, 1962 (5)	Estimated requirement for six months ending 30th September, 1962 (6)
		Total parliamentary estimate (3)	Expenditure to 31st March, 1961 (approximate) (4)		
27. Any Act.	Brought forward ... To provide for possible further expenditure for purposes authorised by Parliament (whether before or during the financial period), for which it may be desirable that the Council should have spending power.	£ —	£ —	£ 100,000 33,497,000	£ 100,000 16,827,150 16,927,150

Carried forward ... 50,524,150

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes authorised by the same Act.

SCHEDULE—*continued*

PART II

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS

Brought forward £50,524,150

Bodies and persons to whom money may be lent (1)	During year ending 31st March, 1962 (2)	During six months ending 30th September, 1962 (3)
28. Metropolitan borough councils	£ 3,000,000	£ 1,500,000
29. Governors or managers of educational institutions, including special and approved schools; committees of school treatment centres or district nursing associations; governors or committees of voluntary hostels, homes or other establishments; Haileybury Guild (for the provision of new premises); and (for the provision of motor vehicles for official purposes) staff employed by the Council or by district nursing associations.	100,000	50,000
30. Councils of county districts being receiving districts for the purposes of the Town Development Act, 1952.	1,100,000	500,000
31. Under the London County Council (General Powers) Act, 1957, purchasers or lessees of land from the Council to assist them to develop such land.	50,000	25,000
32. Sundry persons or bodies of persons under the Housing Act, 1957, and Housing (Financial Provisions) Acts, 1958 and 1959.	1,300,000	650,000
Total	5,550,000	2,725,000

8,275,000

Carried forward ... £58,799,150

SCHEDULE—*continued*

PART III

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE

Brought forward £58,799,150

Purposes (1)	During year ending 31st March, 1962 (2)	During six months ending 30th September, 1962 (3)
33. General enlargement of spending and lending power to provide, under Treasury sanction, for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in Parts I and II of this schedule respectively.	£ 2,000,000	£ 1,000,000
		£3,000,000
		<u>£61,799,150</u>

Table of Statutes referred to in this Act

Short title	Session and chapter
Borrowing (Control and Guarantees) Act, 1946 ...	9 & 10 Geo. 6 c. 58.
London County Council (Loans) Act, 1955 ...	4 & 5 Eliz. 2 c. xxvi.
London County Council (Money) Act, 1960 ...	8 & 9 Eliz. 2 c. xxxv.

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